

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: June 18, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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10 0	Novak vs. Andry, 24-01414288	<i>Off-calendar.</i>
10 1	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	Defendant Ali Enteshari ("Defendant") moves to compel plaintiff Space Exploration Technologies Corp. ("Plaintiff") to serve further responses to Form Interrogatories, Set One, Nos. 3.7, 9.1, 9.2, 12.1, 12.2, 12.3, 12.6, 12.7, 13.1, and 13.2 and for an order granting monetary sanctions. A party may move for an order compelling further responses to interrogatories if the party deems an

	answer to be evasive or incomplete, an exercise of the option to produce documents under section 2030.230 is unwarranted or the required specification of the documents is inadequate, or an objection is without merit or too general. (Code Civ. Proc., § 2030.300(a).) No. 3.7 Defendant argues further response to No. 3.7 regarding Plaintiff's licenses or registrations must be compelled because Plaintiff has not provided a complete response and its licenses are directly relevant to its operations, credibility, and potential regulatory compliance issues alleged in this case. In this action, Plaintiff alleges that Defendants obtained stolen property through a fraudulent credit card chargeback scheme. There are no issues regarding Plaintiff's regulatory compliance that are relevant here. Further, Plaintiff's licenses and registrations would not reveal any information regarding its operations that would be relevant here, such as its policies and procedures regarding credit card purchases, shipping and chargebacks. Nor would they bear on Plaintiff's credibility. Therefore, the information sought in No. 3.7 is not relevant or reasonably calculated to lead to the discovery of admissible evidence. No. 9.1 Defendant argues that further response to No. 9.1 is warranted because the response fails to provide the specific information requested regarding the nature, date, and amount of damages claimed and the recipient of each claimed item of damage. Plaintiff argues no further response is warranted because Defendant's use of the generic definition of the term "incident" renders the request unintelligible and, moreover, there is no further information to provide because a comprehensive explanation of Plaintiff's damages has been provided in a detailed spreadsheet. The term "incident" is defined as "the circumstances and events surrounding the alleged accident, injury, or other occurrence or breach of contract giving rise to this action or proceeding." By asking for all damages Plaintiff attributes to the incident, Defendant is plainly asking Plaintiff to provide information regarding all damages at issue in Plaintiff's own pleading. Plaintiff's argument that the interrogatory is unintelligible due to the defined term is rejected. Further, Plaintiff's arguments establish that there is additional information that Plaintiff could and should provide in response. While Plaintiff argues that all information available to it has been provided in a spreadsheet, as Defendant points out, the response itself
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	makes no reference to any spreadsheet or other document. Thus, the Court finds further response to be warranted. No. 9.2 This interrogatory asks Plaintiff to describe each document that supports the damages it claims. In response, Plaintiff listed several categories of documents: "documents showing that the payment information used to fund the purchase of goods that were shipped to Defendants were charged back by the credit card issue and the reasons therefor; shipping and delivery records; order history records; documents showing the share of Starlink kits that are sold directly by Responding Party; documents showing the amounts charged by the investigators, attorneys, and court system for investigating and pursuing Responding Party's claims against Defendants; and sheriffs' incident reports and property receipts." Defendant argues that further response is required because a generic reference to broad classes of documents is insufficient. The Court disagrees. The interrogatory asked Plaintiff to describe each relevant document and by providing the general categories of documents, Plaintiff has adequately identified all documents upon which it relies in support of its claim for damages. Plaintiff is not required to identify each individual document by name. Defendant also argues that the response is insufficient because it does not identify each person who has custody of the documents. However, Plaintiff represents that it has already produced its shipping and delivery records, Sheriff incident reports, property receipts, a spreadsheet with shipping, delivery, and chargeback information, and documents related to investigator fees. Thus, clearly, the identified documents are in the custody of Plaintiff. The Court does not find that compelling a further response to require Plaintiff to state that those documents are within its custody, a statement that would provide no probative value, to be warranted. No. 12.1 Defendant argues that a further response to No. 12.1 is warranted because Plaintiff's objection to the term "incident" is without merit. While the Court agrees that the objection is without merit, Plaintiff provided a full and complete response to the interrogatory despite its objection. Thus, the Court finds no further response to be warranted. Nos. 12.2, 12.3, and 12.6
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	Interrogatory No. 12.2 asks Plaintiff whether anyone on its behalf interviewed any individual concerning the incident and, if so, for the name, address, and telephone number of both the interviewer and the interviewee and the date of the interview. No. 12.3 asks for the same information regarding any written or recorded statement obtained by Plaintiff. No. 12.6 asks for information regarding reports made by any person concerning the incident. In response to Nos. 12.2 and 12.3, Plaintiff stated it would produce the Orange County Sheriff's Incident Report and Plaintiff's internal investigation records, and in response to No. 12.6, Plaintiff stated it would produce nonprivileged writings, all pursuant to Code of Civil Procedure section 2030.230. Defendant argues further responses are required because the documents produced do not "easily reveal all the information requested." However, the Court finds Plaintiff's reliance on section 2030.230, which allows for production of documents from which an answer to an interrogatory may be found if the burden of preparing a summary of the documents would be substantially the same for the propounding and responding parties, to be proper. No. 12.7 In response to this interrogatory regarding whether anyone has inspected the scene of the incident, Plaintiff stated that the interrogatory is inappropriate for the allegations at issue here. As Plaintiff points out, this is not a case where there was one single incident. Therefore, there is not one single "scene of the incident" to be inspected. Thus, the Court finds that Plaintiff's objection has merit and no further response is warranted. Nos 13.1 and 13.2 These interrogatories concern whether any surveillance was conducted by Plaintiff or anyone acting on its behalf. Plaintiff's response states that Plaintiff retained an investigator who conducted surveillance of Defendants Ali Enteshari and Amin Enteshari in late 2023 near the Rockrose Way address in Irvine, California and Plaintiff will produce the surveillance videos, which reflect the names and contact information of the investigators and the custodians of any surveillance photographs, along with any nonprivileged written reports. Defendant again argues that Plaintiff's reliance on section 2030.230 is improper. However, the burden of ascertaining the names and contact information of the investigators from the produced surveillance videos and written reports would be substantially the same for both Plaintiff and Defendant. The Court finds that Defendant's
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		arguments against section 2030.230 lack merit and no further responses are warranted. In light of all the above, the Motion to Compel Further Responses to Form Interrogatories is GRANTED as to No. 9.1 and DENIED as to all other disputed interrogatories. Plaintiff shall serve a further response within 15 days. No sanctions. <i>Moving party to give notice.</i>
10 2	Rask vs. County of Orange, 25-01495933	<i>Off-calendar.</i>
10 3	Mendes vs. Morrison, 25-01504828	Cross-Defendants Ace Professional Property Management Inc., James J. Liberio, and Liberio Realty Inc., dba Ace Professional Property Management ("Cross-Defendants") demur to the (1) first cause of action for breach of contract, (2) second cause of action for negligence, (3) third cause of action for breach of fiduciary duty, (4) fourth cause of action for implied indemnity, (5) fifth cause of action for comparative indemnity, (6) sixth cause of action for equitable indemnity, (7) seventh cause of action for contribution, and (8) eighth cause of action for declaratory relief as alleged in the Cross-Complaint by Lyle Morrison in his individual capacity and as trustee of The Morrison Living Trust, Dated May 24, 2023. The Cross-Complaint at issue is ROA 13. Cross-Complainant Lyle Morrison in his individual capacity and as trustee of The Morrison Living Trust, Dated May 24, 2023 opposes the demurrer. The Demurer presents three arguments: (1) the indemnity clause in the Management Agreement attached as Exhibit A to the declaration in support of the Demurrer bars Cross-Complainant's claims, (2) the negligence cause of action is barred by the economic loss rule, and (3) the fiduciary duty cause of action is barred because the parties were no in a fiduciary relationship. <i>1. Indemnity Clause</i> Much of Cross-Defendants' demurrer rests upon (1) the Court considering the contract attached as an exhibit to the declaration filed in support of the demurrer and (2) the Court interpreting that contract and the impact of that interpretation on the facts alleged in the Complaint. First, Cross-Defendants have provided no legal authority establishing that the Court is permitted to consider and interpret the contract attached as an exhibit to the